

Calendar Line 1

Case Name: *Monar LLC vs Kenneth Rodrigues & Partners, Inc. et al*

Case No.: 24CV442463

Defendants (KRP) seek an order: (1) Compelling Plaintiff (Monar) to serve verified a supplemental responses to KRP's Form Interrogatories-Construction, Set One, Special Interrogatories, Set One, and Requests for Interrogatories-Construction, Set One, Special Interrogatories, Set One, and Requests for Production of Documents, Set One in the nature of the Statement of Claim agreed to by them in a fashion admissible in a court of law; (2) Compelling Monar to produce supplemental documents fully responsive to KRP's Request for Production of Documents, Set One, and to identify any and all documents being withheld on privilege or other grounds; and (3) that Monar and its counsel pay monetary sanctions to KRP for reasonable expenses and attorney's fees incurred in connection with this discovery proceeding in the total sum of not less than \$12,000 (with no sanctions being paid by KRP or their counsel to Monar or its counsel).

The Court begins by noting that KRP's indignant tone and hyperbole is bold in a case in which KRP has been sanctioned by this Court for discovery violations on March 12, 2025, March 14, 2025, March 26, 2025, May 7, 2025, August 27, 2025, and August 29, 2025. Monar's opposition is slightly less *ad hominem*. Fortunately, the correspondence between counsel mostly seems to take a different tact and, unusually, the Court actually preferred reading much of that material.

KRP asserts in its memorandum that as of the filing of the motion “absolutely nothing has been provided in the way of supplemental responses or documents” (Memorandum, at p. 7, emphasis original.) Since the filing of the motion, some exchange has taken place or has been promised. For instance, as of May 15, 2026, Monar claimed to be “producing additional responsive documents which were recently obtained from Plaintiff's third-party contractor.” (Opposition, at p. 2.) KRP argues that Monar has never given “an unequivocal statement ... that the ... 858 pages produced to date comprise all of the responsive documents within Plaintiffs possession, custody, or control.” (Reply, at p. 6, emphasis omitted.) This seems to be easily addressed by Monar. “Plaintiff's counsel further represented the Allocation was subject to further change, as additional information in Teamwrkx's production could affect Plaintiff's expert's evaluation.” (Opposition, at p. 4.) Whatever the Teamwrkx material means to the parties' agreement that Monar would provide a verified Statement of Claim or allocation, that material is now with Monar.

Under these circumstances, although the parties perceive they have engaged in an exhaustive meet and confer effort, the Court is going to require more. Indeed, once before the parties resolved or narrowed discovery issues after motions practice was initiated. In light of the current circumstances the Court orders the following:

- 1) The parties are ordered to conduct good faith, reasonable and meaningful meet and confers, either in person, by phone or video conference, to try to narrow the issues in this motion;

- 2) Monar shall have until June 26, 2026 to further supplement its discovery responses, including the provision of a privilege log if applicable, and its Statement of Claim/Allocation;
- 3) The motion to compel, including each party's request for monetary sanctions, is CONTINUED to July 31, 2026 at 9:00 a.m. in Department 13.
- 4) The parties shall file an updated *joint* statement no later than July 17, 2026, which shall identify the remaining items in dispute and the reasons why further responses should/should not be compelled.

The Court will prepare the final order.

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Calendar Line 2

Case Name: *Eric Hartman vs City of San Jose- Finance Department et al*

Case No.: 24CV444291

Plaintiff moves to reclassify this action from an unlimited civil case to a limited civil case. Defendant opposes and argues that the matter should instead be reclassified as a small claims action.

Under Code of Civil Procedure section 403.040, the Court may reclassify an action upon motion where the amount in controversy falls within the jurisdictional limits of a different classification. A limited civil case is appropriate where the amount in controversy does not exceed \$35,000. There is no dispute, and the Court finds, that the matter will necessarily result in a verdict below the jurisdictional amount required by statute for classification as an unlimited civil case. (*Hiona v. Superior Court* (2020) 48 Cal.App.5th 866, 872; *Stern v Superior Court* (2003) 105 Cal.App.4th 223, 230–231.)

Small claims jurisdiction is governed by Code of Civil Procedure section 116.220 and is subject to separate procedural requirements and party limitations. If a plaintiff files an action as a limited civil case, it cannot be transferred to the small claims division without the plaintiff's consent. (*Rosenberg v. Superior Court* (1998) 67 Cal.App.4th 860, 867.) Defendant cites no authority permitting reclassification of a pending unlimited civil action into small claims on motion.

Accordingly, the motion to reclassify is GRANTED and Defendant's request to reclassify the action as a small claims matter is DENIED. The action is reclassified as a limited civil case.

The Court will prepare the final order.

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